

CITATION: Crawford v. Toronto (City), 2018 ONSC 1729
COURT FILE NO.: CV-17-568967
DATE: 20180315

**ONTARIO
SUPERIOR COURT OF JUSTICE**

BETWEEN:	)	
	)	
LENA CRAWFORD	)	<i>Ava M. Hillier</i> for the Plaintiff
	)	
Plaintiff	)	
	)	
– and –	)	
	)	
THE CORPORATION OF THE CITY OF	)	<i>Adam Grant</i> for the Defendants Enbridge
TORONTO, JODY CASH, JULIE CASH,	)	Gas Distribution Inc. and Link-Line
CASA BUILDING GROUP INC.,	)	Contractors Ltd.
ENBRIDGE GAS DISTRIBUTION INC.	)	
and LINK-LINE CONTRACTORS LTD.	)	<i>Peter Rollo</i> for the Defendant Casa Building
	)	Group Inc.
Defendants	)	
	)	<i>Frank Caruso</i> for the Defendants Jody and
	)	Julie Cash
	)	
	)	<i>Kitto Lau</i> for the Defendant City of Toronto
	)	
	)	HEARD: March 1, 2018

PERELL, J.

REASONS FOR DECISION

A. Introduction

[1] This is a motion for a partial summary judgment.

[2] On January 27, 2012, the Plaintiff Lena Crawford slipped and fell on the sidewalk in front of the newly-constructed home of the Defendants Jody and Julie Cash at 157 Craighurst Ave. in the City of Toronto. Ms. Crawford alleged that while walking in front of the Cashes' property she tripped over the bottom of a construction fence which was covered by snow, and she fell into a depression in the boulevard next to the sidewalk. The home had been constructed by Casa Building Group Inc. The gas line to the home had been connected by Enbridge Gas Distribution Inc., which had contracted the work to Link-Line Contractors Ltd., a utility contractor.

[3] Ms. Crawford suffered a serious injury to her ankle, and on January 23, 2014, she sued Jody and Julie Cash, Casa Building Group, Enbridge, Link-Line and the City of Toronto, which was the owner and occupier of the boulevard on Craighurst Ave. Enbridge and Link-Line now bring a partial summary judgment motion to have the action and the crossclaims against them dismissed.

[4] For the reasons that follow, I dismiss the motion.

B. Evidentiary Background

[5] In bringing their summary judgment motion, Enbridge and Link-Line relied on the affidavits dated May 16, 2017 and January 18, 2018 from Matthew McGivery, a foreman for Link-Line. Mr. McGivery was cross-examined.

[6] In resisting the summary judgment motion, the Cashes relied on an affidavit dated October 18, 2017 from Mr. Cash.

[7] In resisting the summary judgment motion, Casa Building Group relied on the affidavit dated November 21, 2017 from Jonathan Lasky, the owner of Casa Building Group and on an affidavit dated February 20, 2018 from Emily Ackerman, a litigation clerk for Casa Building Group's lawyer of record.

[8] In resisting the summary judgment motion, the City of Toronto relied on an affidavit dated October 6, 2017 from Dean Stevens, a Field Investigator of the Transportation Services Division of the City.

[9] Ms. Crawford took no position on the summary judgment motion and did not file any material.

C. Facts

[10] In August 2011, Jody and Julie Cash hired Casa Building Group, which is owned by Mr. Lasky, to demolish a residence and to construct a new detached residential home at 157 Craighurst Ave. in Toronto, Ontario. Mr. Lasky, who was not cross-examined, deposed that in August 2011 and up until December 9, 2011, the sidewalk, boulevard, and curb adjacent to 157 Craighurst Ave. was level and without any hazards. He said that Casa Building Group and its subtrades did no work to the sidewalk, boulevard, or curb and that its construction equipment did not intrude into this area.

[11] Mr. Cash, who was not cross-examined, deposed that the boulevard was level or nearly level with the sidewalk and curb up until December 9, 2011. He confirmed Mr. Lasky's evidence that the construction work at 157 Craighurst Ave. did not involve the boulevard area adjacent to the property.

[12] On October 17, 2011, Mr. Cash requested that Enbridge install a new gas line to service the property. Enbridge subsequently contracted Link-Line to perform the installation work.

[13] On November 2, 2011, the City issued a cut permit to Enbridge authorizing it to cut the boulevard at 157 Craighurst Ave. to install the gas line. The conditions in the cut permit require Enbridge to indemnify the City from any claim for injury or damage arising from the

construction, operation and/or maintenance of the work referred to in the permit.

[14] Mr. McGivery, Link-Line's foreman, testified that he conducted a pre-inspection of the work site. However, Link-Line did not test the soil. Mr. McGivery does not recall the topography of the boulevard, and he does not recall any depression in the boulevard.

[15] On December 9, 2011, Link-Line came to its job site. As it happened, Mr. Lasky was at 157 Craighurst Ave. for part of the time while Link-Line was installing the gas line.

[16] Link-Line's job was to install a new two-inch diameter gas line made of polyethylene plastic from an excavated sidewalk bay on the north side of Craighurst Ave. (158-160 Craighurst Ave.), where the gas main was located, to an excavated sidewalk bay on the south side of the avenue, where the line would be connected to a gas meter at the Cashes' property (157 Craighurst Ave.). A backhoe would excavate the sidewalk bays and a Vermeer pneumatic torpedo would burrow under the road from one sidewalk bay to the other. Joe Taveres, who did not testify, was Link-Line's backhoe operator.

[17] Link-Line began its work. The sidewalk bays were excavated, and the torpedo was launched. After about approximately an hour of work, the torpedo lodged itself and stopped working. As a result, the roadway and curb were excavated on the south side of the street to retrieve and reactivate the torpedo. The torpedo completed its work and pushed through the boulevard wall and the boulevard reaching the excavated sidewalk bay in front of the Cashes' home.

[18] The new gas line was covered with 12 inches of sand and tamped with jumping jack compactors. U-fill, a mixture of stone, water and concrete, brought to the site by a cement truck, was then deposited into the sidewalk and roadway, leaving a further two to three inches for temporary asphalt repairs. There would have been a space, or annulus, between the two-inch gas line and the three-inch hole created by the torpedo. Nothing was done to fill this gap. Mr. McGivery could not say whether the soil might have collapsed around the pipe, but stated that it was possible that soil settlement could be expected when using this technology. Once the fill was in place, Mr. McGivery's crew completed their part of the job and they left the site around 3 p.m.

[19] Another Link-Line crew, led by foreman Pino Constantino, attended the site to complete temporary asphalt repairs and any further cleanup required. Mr. Constantino did not testify for the summary judgment motion.

[20] In the afternoon, Mr. Lasky photographed Link-Line's work following their completion of temporary asphalt repairs. He believed that further repairs were required to the boulevard and that Link-Line would be re-attending to complete the work.

[21] Also on December 9, Mark Edwards, an inspector for Link-Line, attended at the site. He also spoke to Mr. McGivery. Later that day or the next day, Mr. Edwards prepared a "cut report." The cut report indicated that Link-Line excavated the boulevard and that further cleanup was required. The cut record identified five areas that had been excavated but there appear to be discrepancies or errors in the cut record that for present purposes I need not elucidate because as noted above, I am dismissing the summary judgment motion, and it will be for the trial judge to determine the significance of the cut report.

[22] Mr. Edwards did not testify for the summary judgment motion.

[23] No party provided any expert evidence for the summary judgment motion.

[24] On January 27, 2012, Ms. Crawford was walking on the sidewalk on Craighurst Ave. and she slipped and fell. There was snow on the sidewalk and adjoining properties. She testified during her examination for discovery that her foot caught in a deep depression in the green space adjacent to the sidewalk in front of 157 Craighurst Ave.

[25] Later in the day Ms. Crawford's brother, Michael Waldin, took a photograph where the fall is alleged to have occurred. The photograph shows a depression adjacent to the temporary asphalt repairs. Mr. Waldin did not testify for the summary judgment motion.

[26] On January 23, 2014, Ms. Crawford filed a Statement of Claim and commenced her negligence action against Jody Cash, Julie Cash, Casa Building Group, Enbridge, Link-Line and the City of Toronto.

[27] On October 6, 2014, Jody and Julie Cash delivered their Statement of Defence and Crossclaim against Casa Building Group, Enbridge, Link-Line, and the City of Toronto

[28] On March 6, 2015, Casa Building Group delivered its Statement of Defence and Crossclaim against Jody Cash, Julie Cash, Enbridge, Link-Line, and the City of Toronto.

[29] On May 22, 2015, Enbridge and Link-Line delivered a Statement of Defence and Crossclaim against Jody Cash, Julie Cash, Casa Building Group, and the City of Toronto.

[30] On September 3, 2015, the City of Toronto delivered a Statement of Defence and Crossclaim against Jody Cash, Julie Cash, Casa Building Group, Enbridge, and Link-Line.

[31] On September 16, 2015, Mr. Cash was examined for discovery and Mr. McGivern was examined for discovery on behalf of Link-Line.

[32] On November 20, 2015, Mr. Lasky was examined for discovery on behalf of Casa Building Group.

[33] On November 25, 2016, Ms. Crawford was examined for discovery.

[34] On April 4, 2017, Enbridge and Link-Line brought their motion for a summary judgment dismissing the action and the crossclaims.

D. Discussion

1. The Test for a Partial Summary Judgment

[35] Rule 20.04(2)(a) of the *Rules of Civil Procedure* provides that the court shall grant summary judgment if: "the court is satisfied that there is no genuine issue requiring a trial with respect to a claim or defence." With amendments to Rule 20 introduced in 2010, the powers of the court to grant summary judgment have been enhanced. Rule 20.04(2.1) states:

20.04 (2.1) In determining under clause (2)(a) whether there is a genuine issue requiring a trial, the court shall consider the evidence submitted by the parties and, if the determination is being made by a judge, the judge may exercise any of the following powers for the purpose, unless it is in the interest of justice for such powers to be exercised only at a trial:

1. Weighing the evidence.
2. Evaluating the credibility of a deponent.

3. Drawing any reasonable inference from the evidence.

[36] In *Hryniak v. Mauldin*¹ and *Bruno Appliance and Furniture, Inc. v. Hryniak*,² the Supreme Court of Canada held that on a motion for summary judgment under Rule 20, the court should first determine if there is a genuine issue requiring trial based only on the evidence in the motion record, without using the fact-finding powers introduced when Rule 20 was amended in 2010. The analysis of whether there is a genuine issue requiring a trial should be done by reviewing the factual record and granting a summary judgment if there is sufficient evidence to fairly and justly adjudicate the dispute and a summary judgment would be a timely, affordable and proportionate procedure.

[37] If, however, there appears to be a genuine issue requiring a trial, then the court should determine if the need for a trial can be avoided by using the powers under rules 20.04(2.1) and (2.2). As a matter of discretion, the motions judge may use those powers, provided that their use is not against the interest of justice. Their use will not be against the interest of justice if their use will lead to a fair and just result and will serve the goals of timeliness, affordability, and proportionality in light of the litigation as a whole. To grant summary judgment, on a review of the record, the motions judge must be of the view that sufficient evidence has been presented on all relevant points to allow him or her to draw the inferences necessary to make dispositive findings and to fairly and justly adjudicate the issues in the case.³

[38] *Hryniak v. Mauldin* does not alter the principle that the court will assume that the parties have placed before it, in some form, all of the evidence that will be available for trial. The court is entitled to assume that the parties have advanced their best case and that the record contains all the evidence that the parties will present at trial.⁴ Thus, if the moving party meets the evidentiary burden of producing evidence on which the court could conclude that there is no genuine issue of material fact requiring a trial, the responding party must either refute or counter the moving party's evidence or risk a summary judgment.⁵

[39] For a plaintiff to succeed on a motion for summary judgment in a professional negligence action, a plaintiff requires evidence, typically expert evidence, to establish: (1) the standard of care; (2) whether there was a breach of the standard of care; and (3) causation. If this evidence is not presented, there is no genuine issue for trial and summary judgment may be granted dismissing the plaintiff's action.⁶ Conversely, for a defendant to succeed on his or her motion for summary judgment in a negligence action for which expert evidence is necessary about the standard of care, he or she cannot rely on the plaintiff's failure to proffer expert evidence unless the defendant has put his or her best evidentiary foot forward and discharged the evidentiary

¹ 2014 SCC 7.

² 2014 SCC 8.

³ *Campana v. The City of Mississauga*, 2016 ONSC 3421; *Ghaeinizadeh (Litigation guardian of) v. Garfinkle Biderman LLP*, 2014 ONSC 4994, leave to appeal to Div. Ct. refused, 2015 ONSC 1953 (Div. Ct.); *Lavergne v. Dominion Citrus Ltd.*, 2014 ONSC 1836 at para. 38; *George Weston Ltd. v. Domtar Inc.*, 2012 ONSC 5001.

⁴ *Dawson v. Rexcraft Storage & Warehouse Inc.*, [1998] O.J. No. 3240 (C.A.); *Bluestone v. Enroute Restaurants Inc.* (1994), 18 O.R. (3d) 481 (C.A.); *Canada (Attorney General) v. Lameman*, [2008] 1 S.C.R. 372 at para. 11.

⁵ *Toronto-Dominion Bank v. 466888 Ontario Ltd.*, 2010 ONSC 3798.

⁶ *Claus v. Wolfman* (1999), 52 O.R. (3d) 673 (S.C.J.), aff'd (2000), 52 O.R. (3d) 680 (C.A.); *McNeil v. Easterbrook*, [2004] O.J. No. 3976 (S.C.J.); *Ryabikhina v. St. Michael's Hospital*, 2011 ONSC 1884; *Lozowy v. Trillium Health Centre*, [2007] O.J. No. 1332 (S.C.J.); *Kim v. Choi*, 2012 ONSC 6627; *Drougov v. Apotex Inc.*, 2015 ONSC 2896.

burden of proving that there is no genuine issue on the merits of their defence, only after which the burden shifts to the plaintiff to prove that his or her claim has a real chance of success.⁷

[40] In *Baywood Homes Partnership v. Haditaghi*,⁸ the Court of Appeal held that where the motion is for a partial summary judgment, where there may be the risk of re-litigation of issues and inconsistent outcomes, the motions judge is obliged to assess the advisability of a partial judgment in the context of the litigation as a whole. To determine the availability of a partial summary judgment, a judge must consider the entire litigation and exercise his or her discretion to determine, in the particular circumstances of the case, whether something other than a trial will allow a fair and just resolution of the case that avoids the cost and expense of the trial process; each case for a partial summary judgment is decided on its own merits and in accordance with its particular circumstances.⁹

[41] Summary judgment is available for crossclaims and third party claims, but it may be inappropriate to have a summary judgment where deciding the crossclaim or third party claim presents the prospect of re-litigation and inconsistent outcomes.¹⁰

[42] The Court of Appeal has refused to uphold summary judgments in cases where there is a substantial risk of re-litigation and the prospect of inconsistent results, because in such cases the opposite of an efficient, timely and proportionate and fair outcome may be achieved.¹¹ In other cases, the Court of Appeal has upheld partial summary judgments when it has been satisfied that notwithstanding that there are unresolved issues or causes of action, summary judgment will avoid putting the parties to the expense of a trial and a summary judgment will allow the case to be fairly resolved in a proportionate, cost-effective, and timely manner.¹² In *Hyrniak v. Mauldin*,¹³ the Court prescribed caution but did not preclude partial summary judgment in appropriate cases.

2. Positions of the Parties

[43] Enbridge and Link-Line submit that resolution of the claims against them by way of summary judgment will serve the goals of timeliness, affordability, and proportionality as espoused in *Hyrniak v. Mauldin*.¹⁴ They submit that a trial would be vastly more expensive and time-consuming given the completeness of the evidence at this stage of the litigation related to Enbridge and Link-Line's liability as well as the absence of evidence or case law to support the torts alleged as against Enbridge and Link-Line by the co-defendants.

⁷ *Sanzone v. Schechter*, 2016 ONCA 566, leave to appeal refused [2016] S.C.C.A. No. 443 (S.C.C.); *Carreiro v. TimWen Partnership*, 2017 ONSC 2013; *Larusson v. Wein*, 2016 ONSC 5391; *Kurdina v. Dief*, 2010 ONCA 288.

⁸ [2014] O.J. No. 2745, 2014 ONCA 450.

⁹ *Mason v. Perras Mongenais*, 2018 ONSC 1477.

¹⁰ *Hamilton (City) v. Hier + Curran Architects Inc.*, 2015 ONCA 64; *Bongiardina v. York (Regional Municipality)* (2000), 49 O.R. (3d) 641 (C.A.); *KWH Pipe v. Corix Water*, 2014 ONSC 1443; *Sofina Foods Inc. v. Meyn Canada Inc.*, 2017 ONSC 6957.

¹¹ *Butera v. Chown, Cairns LLP*, 2017 ONCA 783; *Canadian Imperial Bank of Commerce v. Deloitte & Touche*, 2016 ONCA 922; *Baywood Homes Partnership v. Haditaghi*, 2014 ONCA 450.

¹² *Kueber v. Royal Victoria Regional Health Centre*, 2018 ONCA 125; *Li v. Li*, 2017 ONCA 942; *Caffé Demetre Franchising Corp. v. 2249027 Ontario Inc.*, 2015 ONCA 258, aff'd 2014 ONSC 2133.

¹³ 2014 SCC 7 at para. 60.

¹⁴ 2014 SCC 7.

[44] The thesis of Enbridge's and Link-Line's summary judgment motion is that there is no genuine issue for trial in the main action as against Enbridge and Link-Line and there is no genuine issue for trial in the crossclaims as against them, because on the evidence for the summary judgment motion, which the court is to take as representing the best evidence that the parties have to offer, it has not been established that Link-Line's work caused the depression in the boulevard which was part of the hazard that led to Ms. Crawford's slip and fall.

[45] Further, Enbridge and Link-Line submit that, like the cases in which defendant doctors and others have successfully achieved a summary judgment, they too should be granted a summary judgment because of the absence of any expert evidence from the plaintiff or from the co-defendants on the standard of care. Enbridge and Link-line submit that Ms. Crawford in the main action and the co-defendants in the crossclaims have not met the evidentiary burden of showing that there are genuine issues requiring a trial.

[46] Jody Cash and Julie Cash submit that the summary judgment motion should be dismissed because the evidence establishes that Enbridge and Link-Line caused or contributed to Ms. Crawford's injuries or they have not established that there are no genuine issues requiring a trial.

[47] Casa Building Group and the City of Toronto respectively submit that there are genuine issues for trial, this is not an appropriate case for a summary judgment, and Enbridge and Link-Line have not established a case for a partial summary judgment.

[48] As noted above, Ms. Crawford took no position with respect to the summary judgment motion.

3. Analysis

[49] In addition to quantifying Ms. Crawford's damages, a trial of Ms. Crawford's cause of action would determine whether any of the Cashes, Casa Building Group, Enbridge, Link-Line, and the City of Toronto were liable to Ms. Crawford for occupier's liability or negligence, whether Ms. Crawford was contributorily negligent, whether the negligence of the defendants caused the injuries suffered by Ms. Crawford, and the apportionment of liability, if any, among the defendants pursuant to the *Negligence Act*.¹⁵ The source of the duties of care of the defendants and the associated standard of care differs among the defendants. A trial would also have to determine the crossclaims among the defendants. A trial would determine the City's indemnity claim against Enbridge.

[50] In my opinion, the case at bar is not an appropriate case for a summary judgment. There is not sufficient evidence presented on all relevant points to allow me, fairly or correctly, to draw the inferences necessary to make dispositive findings. Having regard to the litigation as a whole, there is a high risk of re-litigation of issues and inconsistent outcomes. Link-Line's several crews of employees would likely be subpoenaed and removing Link-Line and Enbridge and granting a partial summary judgment will not allow a fair and just resolution of the case that avoids the cost and expense of the trial process.

¹⁵ R.S.O. 1990, c. N.1

[51] I disagree with Enbridge's and Link-Line's argument that they are entitled to a summary judgment because the plaintiff and the co-defendants did not provide any expert evidence about the standard of care and thus there were no genuine issues for trial that Link-Line was negligent in causing the depression that may have caused or contributed to Ms. Crawford's slipping and falling.

[52] As demonstrated by *Sanzone v. Schechter*,¹⁶ for a defendant to succeed on his or her motion for summary judgment in a professional negligence action, he or she cannot rely on the plaintiff's failure to proffer expert evidence unless the defendant has put his or her best evidentiary foot forward and discharged the evidentiary burden of proving that there is no genuine issue on the merits of their defence, only after which the burden shifts to the plaintiff to prove that his or her claim has a real chance of success.

[53] In the immediate case, Link-Line provided evidence about what it did on the site, but it provided no evidence about whether what it did was in accord with the standard of care. Enbridge and Link-Line did not meet the burden of showing that there were no genuine issues requiring a trial and the evidentiary burden never shifted to the plaintiff or the co-defendants. The issues in the crossclaims are inextricably linked to the issues in the main action and it is not in the interests of justice to grant a partial summary judgment in the circumstances of the case at bar.

E. Conclusion

[54] For the above reasons, Enbridge's and Link-Line's summary judgment motion is dismissed.

[55] If the parties cannot agree about the matter of costs, they may make submissions in writing beginning with the Cashes', Casa Building Group's and the City of Toronto's submissions within 20 days from the release of these Reasons for Decision followed by Enbridge's and Link-Line's submissions within a further 20 days.

Perell, J.

Released: March 15, 2018

¹⁶ 2016 ONCA 566, leave to appeal refused [2016] S.C.C.A. No. 443 (S.C.C.).

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Plaintiff

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THE CORPORATION OF THE CITY OF TORONTO,
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Defendants

REASONS FOR DECISION

PERELL J.

Released: March 15, 2018